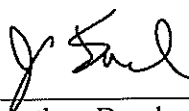


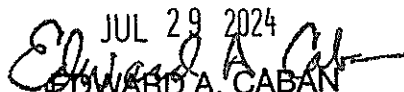
FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Nancy M. Slater, Department Advocate's Office, November 2, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28569 against Police Officer Charlie Ruiz-Reyes, Tax Registry No. 964266. This case was conferenced on October 19, 2023, before Assistant Deputy Commissioner of Trials Paul M. Gamble, who approved the negotiated penalty of a Command Discipline Schedule B and the total forfeiture of five (5) vacation days, after Police Officer Charlie Ruiz-Reyes accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated July 2, 2023. Charges and Specifications are dismissed for plea purposes.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

JUL 29 2024

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28569
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, RUIZREYES	FIRST CHARLIE	M.I.	COMMAND 032 PRECINCT
SHIELD NO. 25922	TAX REGISTRY NO. 964266	SOCIAL SECURITY NO.	DATE APPOINTED 07/05/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Charlie RUIZREYES, on or about February 15, 2022, at approximately 1730, while assigned to 032 PC, in the vicinity of § 87(2)(b) New York County, was discourteous, in that PO RUIZREYES spoke discourteously to § 87(2)(b) by stating in sum and substance, "this is going to bite you in the ass," without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Charlie RUIZREYES, on or about February 15, 2022, at approximately 1730, while assigned to 032 PCT, in the vicinity of § 87(2)(b) New York County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO RUIZREYES threatened § 87(2)(b) by stating in sum and substance, "you dont want to see me outside".	DISMISSED	
3. Police Officer Charlie RUIZREYES, on or about February 15, 2022, at approximately 1730, while assigned to 032 PCT, in the vicinity of § 87(2)(b) New York County, engaged in conduct prejudicial	DISMISSED	

DC Bursi
FIRST DEPUTY COMMISSIONER

12/7/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

7/29/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28569
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, RUIZREYES	FIRST CHARLIE	M.I.	COMMAND 032 PRECINCT
SHIELD NO. 25922	TAX REGISTRY NO. 964266	SOCIAL SECURITY NO.	DATE APPOINTED 07/05/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
to good order, efficiency, or discipline of the Department, in that PO RUIZREYES refused to provide their name to § 87(2)(b)		
4 . Police Officer Charlie RUIZREYES, on or about February 15, 2022, at approximately 1730, while assigned to 032 PCT, in the vicinity of § 87(2)(b) § 87(2)(b) New York County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO RUIZREYES refused to provide their shield number to § 87(2)(b)	DISMISSED	
5 . Police Officer Charlie RUIZREYES, on or about February 15, 2022, at approximately 1730, while assigned to 032 PCT, in the vicinity of § 87(2)(b) § 87(2)(b) New York County, was discourteous in that PO RUIZREYES spoke discourteously, by stating that § 87(2)(b) is "a criminal and a perp".	DISMISSED	

DC Bruner
FIRST DEPUTY COMMISSIONER

12/7/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

7/29/24
DATE



POLICE DEPARTMENT

July 19, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202201047 (Incident Date: February 15, 2022 on DADS No. 2023-28569)
involving Police Officer Charlie Ruiz-Reyes, Tax No. 964266

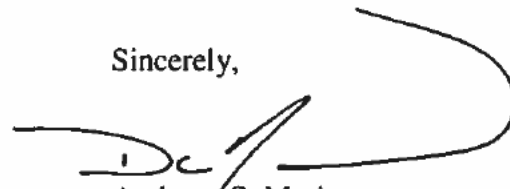
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Charlie Ruiz-Reyes, and has determined that his actions do not warrant disciplinary action.

In this matter, Officer Ruiz-Reyes was off-duty when he interacted with hospital security staff. Security staff asserted that Officer Ruiz-Reyes identified himself as law enforcement to request preferential treatment. Officer Ruiz-Reyes maintained that he identified himself as law enforcement to explain to security why he was armed (visitors had to pass through metal detectors). In either event, the Police Commissioner has determined that Officer Ruiz-Reyes' actions are outside the purview of the CCRB as Officer Ruiz-Reyes was not acting in his official capacity as a member of the service.

Therefore, the Police Commissioner intends to direct that Police Officer Ruiz-Reyes receive no disciplinary action.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 26, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Charlie Ruiz-Reyes
Disciplinary Case No.: 2023-28569

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 19, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you intend that “Police Officer Ruiz-Reyes receive no disciplinary action” related to the misconduct alleged in this case. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification. Deputy Chief Marino stated that after reviewing the recommendation of CCRB, you determined that the actions of Police Officer Ruiz-Reyes do no warrant disciplinary action. CCRB disagrees with your recommendation.

It is undisputed that Police Officer Ruiz-Reyes was off-duty but identified himself as a member of service. After not being granted preferential treatment due to his status as a member of service, Police Officer Ruiz-Reyes spoke discourteously and threatened the complainants and then refused to provide his name and shield to them. Not only did Police Officer Ruiz-Reyes admit that he refused to provide his shield number because he was off duty, but Police Officer Ruiz-Reyes did in fact accept the findings of substantiation of the allegations contained within the Charges and Specifications in this matter during the plea conference in this case. Hence, Police Officer Ruiz-Reyes should be held accountable for this misconduct and CCRB’s proposed penalty of a Command Discipline Schedule B and the total forfeiture of five (5) vacation days be imposed.

Please note that the negotiated penalty was one mandated by the Disciplinary Matrix, as CCRB took into account the totality of the circumstances during this incident and the nature of the misconduct when choosing the penalty for each specification and running them concurrently for the total forfeiture of five (5) vacation days. Additionally, this negotiated penalty was accepted by Assistant Deputy Commissioner of Trials Paul M. Gamble during the plea conference held on October 19, 2023.

While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the negotiated penalty of a Command Discipline Schedule B and the total forfeiture of five (5) vacation days be imposed for all specifications.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J Darche', is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

CC: Stuart London, Esq.